every case involving the central government should be heard in Delhi rather than at the relevant state high court.

The central government's strategy of seeking a transfer of the petitions to the Delhi High Court yielded dividends. On 3 June 1983, a bench of two judges of the Delhi High Court rejected the challenges to the constitutional validity of the AFSPA. The court accepted that collective security would trump individual rights and liberties: 'Social imperatives for the greater good must take precedence,'[14] the court said. The court was also convinced by the argument that the AFSPA was in operation in a sensitive geographic region, with 'China and Nepal in the North and North West, Burma in the East and Bangladesh (formerly E. Pakistan) in the South'.[15]

While this strategic game of petitions and transfers was playing out in the high courts, separate petitions challenging the constitutional validity of the AFSPA were being filed in the Supreme Court. These petitions began piling up, with petitioners which included prominent human rights organizations such as the People's Union for Democratic Rights, the Naga People's Movement for Human Rights and the Human Rights Forum. The petitions gathered dust for over one and a half decades, with no hearings taking place and the constitutional challenge remaining undecided. In that time, India had witnessed seven new prime ministers – from Rajiv Gandhi to I.K. Gujral – being sworn into office. No less than eleven chief justices of the Supreme Court (from Justice Y.V. Chandrachud to Justice A.M. Ahmadi) had retired from office during that period. Laws almost identical to the AFSPA were enacted and applied first to Punjab[16] (in 1983) and later to Jammu and Kashmir (in 1990).[17]

As the petitions remained pending, the human cost of the AFSPA was incalculable. Over a dozen women were gang-raped by paramilitary forces in a period of three days in 1988 in the village of Ujanmaidan in Tripura. In 1995, soldiers began shooting indiscriminately in Kohima after mistaking the sound of a tyre bursting for a bomb blast. Seven people (including two children) were killed, and twenty-two were injured as a result.[18] In a separate incident the same year, a man was arrested on suspicion of being an